

26STCV15296 26STCV15296

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 26STCV15296 Hearing Date: September 23, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September
23, 2026

Case Name: STEVE MENESES v.
EMCOR FACILITIES SERVICES, INC. et al.

Case No.: 26STCV15296

Motion: Motion to
Strike

Moving Party: Defendant Emcor Facilities Services, Inc.

Responding Party: Plaintiff Steve Meneses

Notice: OK

Ruling: The Motion to
Strike punitive damages is GRANTED with leave to amend. Paragraphs 4, 24, 25,
48, 49, 52, 56, and 58-66, as well as page 9 line 4 and Prayer for Relief "C. Punitive Damages" page 14 line 13 are
ordered stricken.

Moving party to
give notice.

The Court encourages all parties to appear remotely via LA
CourtConnect. If submitting on the
Court's tentative ruling, please follow the instructions provided above.

BACKGROUND

On May 13, 2026, Plaintiff Steve
Meneses ("Plaintiff") filed a complaint against Defendants Emcor Facilities
Services, Inc. and Does 1 through 100 for (1) negligence, (2) negligence per
se, and (3) statutory liability. On September 21, 2026, Plaintiff filed an
amendment to complaint to identify Doe 51 as Mesa Energy Systems, Inc.

Plaintiff alleges that on July 15,
2025, Defendants while driving fatigued and tired, traveling at a high speed
while using a cell phone caused a collision by crashing into Plaintiff's
vehicle, thereby causing special and general damages to Plaintiff.

Defendant now seeks to strike the
alleged punitive damages.

DISCUSSION

Defendant moves for an order
striking punitive damages, specifically, the following portions of the
Complaint: paragraphs 4, 24, 25, 48, 49, 52, 56, and 58-66, as well as page 9
line 4 and Prayer for Relief "C.
Punitive Damages" page 14 line 13.

Defendant argues that the complaint
does not state facts sufficient to support the punitive damages allegations
sought because there are no allegations that an officer, director, or managing
agent of Defendant either personally engaged in the purported wrongful conduct,
or otherwise authorized or ratified said wrongful conduct.

"In order to survive a motion to strike an
allegation of punitive damages, the ultimate facts showing an entitlement to
such relief must be pled by a plaintiff." (Clauson v. Superior Court

(1998) 67 Cal.App.4th 1253, 1255.) Civil Code section 3294 authorizes punitive damages upon a showing of malice, fraud, or oppression. Malice is defined as either "conduct which is intended by the defendant to cause injury to the plaintiff," or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Despicable conduct is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 331.) Fraud under Civil Code section 3294 subdivision (c)(3) "means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." Civil Code section 3294(c)(2) defines oppression as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights."

Specific facts must be alleged in support of punitive damages. (Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-392.) Facts must be pled to show that a defendant "act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff's rights." (Silberg v. California Life Ins. Co. (1974) 11 Cal.3d 452, 462.) Conduct that is merely negligent will not support a claim for punitive damages. (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1288.)

"With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).)

Here, although Plaintiff alleges "[t]o the extent any Defendant is a corporate entity, it is believed that any such Defendant's corporate officers and directors ratified and approved any wrongful conduct alleged in this Complaint or were directly responsible for perpetrating such conduct (Complaint, ¶ 4), this is only a conclusory statement and a regurgitation of the law. Plaintiff does not allege any specific facts that show that Defendant's officer, director, or managing agent of the corporation ratified and approved or were directly responsible for perpetrating the wrongful conduct alleged in the Complaint, using a phone while driving. At most Plaintiff alleges that Defendant instituted internal policies and procedures

which prioritized company profits over the safety of the public (Complaint, ¶ 49) and that Defendant's officers, directors, and managing agents had advanced knowledge that their employees operated Defendant's vehicle while fatigued at a high rate of speed while using a cell phone or other mobile communication device in violation of California traffic and safety rules (Complaint, ¶ 51), but again, no specific facts are alleged that lead to these conclusory allegations.

Plaintiff attempts to rely on *Romo v. Ford Motor Co.* (2002) 99 Cal.App.4th 1115, 1141, which explained that "[i]t is difficult to imagine how corporate malice could be shown in the case of a large corporation except by piecing together knowledge and acts of the corporation's multitude of managing agents." However, here, Plaintiff does not allege any acts of Defendant's managing agents, rather only makes conclusory allegations as discussed.

Thus, the Court finds that Plaintiff has failed to plead sufficient facts in conformity with the heightened standard required for punitive damages.

Accordingly, the Court grants the motion to strike punitive damages with leave to amend.

CONCLUSION

The Motion to Strike punitive damages is GRANTED with leave to amend. Paragraphs 4, 24, 25, 48, 49, 52, 56, and 58-66, as well as page 9 line 4 and Prayer for Relief "C. Punitive Damages" page 14 line 13 are ordered stricken.

Moving party to give notice.